

**SUBSTITUTE FOR
HOUSE BILL NO. 6099**

A bill to amend 2011 PA 15, entitled
"Shopping reform and modernization act,"
by amending sections 2, 7, and 12 (MCL 445.312, 445.317, and
445.322).

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 2. As used in this act:

2 (a) "Advertise" means the use or dissemination of an
3 ~~advertising~~ **advertisement** by a person that is subject to this act.

4 (b) "Advertising" or "advertisement" means a communication or
5 representation that is disseminated in any manner by any means for
6 the purpose of inducing, or that is likely to induce, directly or
7 indirectly, the purchase of a consumer item, good, merchandise, or
8 commodity.



(c) "Automatic checkout system" means an electronic device, computer, or machine that determines the price of a consumer item by using a product identity code. An automatic checkout system may, but is not required to, include an optical scanner.

(d) "Consumer item" means an article of tangible personal property used or consumed, or bought for use or consumption, primarily for personal, family, or household purposes.

(e) A price is "displayed" for a consumer item if the price is stamped, affixed, or otherwise marked on the consumer item; or the price of the consumer item is displayed, by signage, by an electronic reader, or by any other method that clearly and reasonably conveys the current price of the consumer item, to a consumer when in the store at the place where the item is located.

(f) "Dynamic pricing" means a pricing system that alters the cost of a consumer item based on non-individualized consumer data, which includes, but is not limited to, the date, time, location, weather, events, purchase history, competitor pricing, or demand.

(g) ~~(f)~~—"Person" means an individual, corporation, limited liability company, partnership, association, or other legal entity.

(h) "Retailer loyalty program" means a system of pricing that may decrease the price of a consumer item and may use an individual's personal identifiable data. A retailer loyalty program may include, but is not limited to, a promotion, coupon, price reduction, subscription model, rebate, reward, loyalty benefit, manufacturer-funded or third-party-funded promotion, or other benefit.

(i) ~~(g)~~—"Sale at retail" means a transfer of an interest in a consumer item by a person that is regularly and principally engaged in the business of selling consumer items to a buyer for use or

1 consumption and not for resale.

2 (j) "Surveillance pricing" means a pricing system that
3 increases the price of a consumer item based on an individual's
4 personal identifiable data, which includes, but is not limited to,
5 device type, MAC address, IP address, individual cookies,
6 geolocation, search history, or purchasing habits. Surveillance
7 pricing does not include dynamic pricing, taxes, delivery fees, or
8 a retailer loyalty program.

9 (k) ~~(h)~~ "Total price" means the full purchase price of a
10 consumer item, excluding sales tax and container deposit.

11 Sec. 7. (1) Except as otherwise provided in subsection (2), a
12 person shall display the total price of a consumer item offered for
13 sale at retail at the place of the retail sale.

14 (2) Subsection (1) does not apply to any of the following:

15 (a) A consumer item that is sold by weight or volume and is
16 not in a package or container.

17 (b) A consumer item sold in a coin-operated vending machine.

18 (c) Prepared food intended for immediate consumption, as **that**
19 **term is** defined in section 4g of the general sales tax act, 1933 PA
20 167, MCL 205.54g.

21 (d) A consumer item purchased by mail or through catalog
22 order, or that is not otherwise visible for inspection by the
23 consumer at the time of the sale, and that is ordered or requested
24 by the consumer, if the price of the consumer item is on the
25 consumer's written order or request or on a bill, invoice, or other
26 notice that describes or names the consumer item and is enclosed
27 with the consumer item.

28 (e) An unpackaged food item.

29 (f) A consumer item that has a total weight of not more than 3



1 ounces, a total volume of not more than 3 cubic inches, and a total
2 price of not more than 30 cents.

3 (g) Live plants.

4 (h) Live animals.

5 (i) Motor vehicles.

6 (j) Motor vehicle parts.

7 (k) Packages of 20 or fewer cigarettes.

8 (l) Greeting cards that are sold individually and have a
9 readable coded price on the back of the card.

10 (m) Merchandise that is ordered as a gift by a consumer and is
11 sent by mail or other delivery service to a person other than the
12 consumer by the retailer at the request of the consumer.

13 **(3) A person shall not use surveillance pricing in the display**
14 **of the total price of a consumer item offered for sale at retail.**

15 Sec. 12. (1) ~~Whether~~ **Except as otherwise provided in**
16 **subsection (3), whether** or not a person seeks damages or has an
17 adequate remedy at law, a person may bring an action to do either
18 or both of the following if the attorney general or prosecuting
19 attorney fails to initiate action within 60 days after receiving
20 notice of an alleged violation of this act:

21 (a) Obtain a declaratory judgment that an act or practice
22 violates this act.

23 (b) Enjoin by temporary or permanent injunction a person that
24 is engaging or is about to engage in an act or practice that
25 violates this act.

26 (2) Except as provided in section 9 **and subsection (3),** a
27 person that suffers loss as a result of a violation of this act may
28 bring an individual or a class action to recover actual damages or
29 \$250.00, whichever is greater, for each day on which a violation of



1 this act is found, together with reasonable attorneys' fees that do
2 not exceed \$300.00 in an individual action.

3 **(3) This section does not apply to a violation of section**
4 **7(3) .**

5 Enacting section 1. This amendatory act takes effect 30 days
6 after the date it is enacted into law.

7 Enacting section 2. This amendatory act does not take effect
8 unless House Bill No. 6098 of the 103rd Legislature is enacted into
9 law.

